

23VECV02397 23VECV02397

County: los-angeles

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Case Number: 23VECV02397 Hearing Date: September 11, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Zeferino

Juarez Vazquez,

Plaintiff.

v.

Uber

Technologies, Inc., et al.

Defendants.

Case Number Department

23VECV02397 107

COURT'S [TENTATIVE]
ORDER RE:

Motion

to Compel Plaintiff's Further Responses to

Request
for Production of Documents, Set Two;

Motion
to Compel Plaintiff's Further Responses

to
Special Interrogatories, Set Two, or in

the
Alternative Issue Sanctions Related to

the
Loss of Income Claims

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

GRANTED IN PART.

GRANT the requests to compel
further responses to the discovery at issue.

DENY the requests for monetary,
issue, and evidentiary sanctions.

I.
BACKGROUND

This
action arises from an alleged bicycle versus automobile collision, which
plaintiff Zeferino Juarez Vazquez ("Plaintiff") alleges occurred on or about
June 2, 2021, in Panorama City, California. (Complaint, ¶ 19.)

On
June 1, 2023, Plaintiff filed a complaint against defendants Uber Technologies,
Inc., Raiser, LLC, Raiser-CA, LLC, Raiser-DC, LLC, Raiser-PA, LLC, Caeros O.
Durias ("Defendant"), PV Holding Corp., and DOES 1 to 70, alleging the
following causes of action: (1) Negligence/Negligence Per Se; (2) Negligence
(Hiring, Training, Supervision and Retention); and (3) Negligent Entrustment.

On

March 18, 2024, Defendant filed an answer.

On

June 24, 2026, Defendant filed a motion to compel Plaintiff to serve further responses to Defendant's second set of requests for production and for monetary sanctions against Plaintiff (the "RPD Motion"). Alternatively, pursuant to the RPD Motion, "Defendant requests narrowly tailored issue and evidentiary sanctions pursuant to Code of Civil Procedure section 2023.030." (RPD Motion at p. 2:19-20.)

Also,

on June 24, 2026, Defendant filed a motion to compel Plaintiff to serve further responses to Defendant's second set of special interrogatories and for monetary sanctions against Plaintiff (the "SROG Motion"). Pursuant to the SROG Motion, as an alternative form of relief, "Defendant requests narrowly tailored issue and evidentiary sanctions pursuant to Code of Civil Procedure section 2023.030." (SROG Motion at p. 2: 21-22.)

On

September 8, 2026, the Court held an Informal Discovery Conference (IDC). The Court indicated, inter alia, that "[a]ll future dates to stand."
(09/08/26 Minute Order at p. 1.)

As

of Wednesday, September 9, 2026, as of 10:30 A.M., both the RPD Motion and the SROG Motion (collectively, the "Motions") are unopposed. Any opposition was required to have been filed and served at least nine court days prior to the hearing. (Code Civ. Proc., § 1005, subd. (b).)

Jury

trial is scheduled for October 5, 2026.

The

Court will address the Motions in this ruling.

II.

MEET

AND CONFER

“A

meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a) [italics added].) “The declaration shall also include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion. This subdivision does not prevent the retention of a certified shorthand reporter.” (Code Civ. Proc., § 2016.040, subd. (b).)

The

Court finds that the meet and confer requirement has not been satisfied. Counsel for Defendant, Alexandria L. Heins (“Heins”), declares, inter alia, that counsel for the parties participated in a videoconference to discuss the purportedly deficient discovery responses. (See Declarations of Alexandria L. Heins Filed June 24, 2026 at ¶ 14.) However, the declarations of Attorney Heins do not indicate whether the parties have met and conferred regarding the retention of a certified shorthand reporter to report the hearing on the motions. (Code Civ. Proc., § 2016.040, subd. (b).)

The

Court will still assess the Motions on their merits. However, the parties are reminded to comply with the requirements of the Code of Civil Procedure.

III.

LEGAL

STANDARD

A

party may move for an order compelling a further response to interrogatories where: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under CCP § 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection is without merit or is too general. (Code Civ. Proc., § 2030.300, subds. (a)(1)-(3).)

On

receipt of a response to a demand for inspection, copying, testing, or

sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection to the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a)(1)-(3).) A motion brought pursuant to Code Civ. Proc. § 2031.310 “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).)¿¿¿

An issue sanction involves an order “that¿designated¿facts be taken as¿established¿in the action¿in accordance with¿the claim of the party adversely affected by the misuse of the discovery process.¿The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. (Code Civ. Proc., § 2023.030, subd. (b).) An evidence sanction involves “an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.” (Code Civ. Proc., § 2023.030, subd. (c).) Discovery “sanctions may not be imposed solely to punish the offending party.” (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1193.)¿

IV.

DISCUSSION

The
RPD Motion

Attorney

Heins declares, inter alia, that Plaintiff was served with the second set of requests for production on February 25, 2026. (Declaration of Alexandria L. Heins Filed June 24, 2026 at ¶¶ 3, 20-21; Exs. 10-11.) Defendant deemed the responses to such discovery as deficient. (Id. ¶¶ 9-18.) Counsel declares that the discovery at issue remains insufficiently answered. (Id. ¶ 18.)

The

Court notes that Plaintiff's operative responses to the discovery at issue are unverified. (Heins Decl., Ex. 11.) Plaintiff is advised that “[u]nsworn

responses are tantamount to no responses at all.” (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

Due

to the lack of opposition, the Court GRANTS the request of Defendant to compel Plaintiff's further responses to set two of Defendant's requests for production. Plaintiff is ORDERED to provide verified, complete, and code-compliant responses, without objections, to set two of Defendant's requests for production nos. 27-35 within 10 days of the date of notice of this order.

However,

as will be explained below, the request for monetary, evidentiary, and issue sanctions as to the RPD Motion is procedurally deficient.

The

SROG Motion

Attorney Heins declares, inter

alia, that Plaintiff was served with the second set of special interrogatories on February 25, 2026. (Declaration of Alexandria L. Heins Filed June 24, 2026 at ¶¶ 3, 20-21; Exs. 10-11.) Defendant deemed the responses to such discovery as deficient. (Id. ¶¶ 9-18.) Counsel declares that the discovery at issue remains insufficiently answered. (Id. ¶ 18.)

The Court notes that Plaintiff's

operative responses to the discovery at issue are unverified. (Heins Decl., Ex. 11.) Plaintiff is advised that “[u]nsworn responses are tantamount to no responses at all.” (Appleton, supra, 206 Cal.App.3d 632, 636.)

Due to the lack of opposition, the

Court GRANTS the request of Defendant to compel Plaintiff's further responses to set two of Defendant's special interrogatories. Plaintiff is ORDERED to provide verified, complete, and code-compliant responses, without objections, to set two of Defendant's special interrogatories nos. 46-57 and 59-62 within 10 days of the date of notice of this order.

However, as will be explained

below, the request for monetary, evidentiary, and issue sanctions as to the SROG Motion is procedurally deficient.

V.

SANCTIONS

"A request for sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought" (Sole Energy Co. v. Hodges (2005) 128 Cal.App.4th 199, 207.)

As to the request for monetary sanctions concerning the Motions, the Court finds that the respective requests for monetary sanctions are procedurally defective. The declarations of Attorney Heins in support of the Motions do not state the amount of sanctions sought, the hourly rate of counsel, or the time spent on the respective motions. "In law and motion practice, factual evidence is supplied to the court by way of declarations." (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224.)

The requests for monetary sanctions as to the Motions are
DENIED WITHOUT PREJUDICE.

Additionally, the requests for narrowly tailored issue and evidentiary sanctions pursuant to the Motions are also procedurally deficient. Defendant has not identified what specific evidentiary and/or issue sanctions are sought in the respective notices of motion. Defendant is informed that "[d]ue process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail." (Fenn v. Sherriff (2003) 109 Cal.App.4th 1466, 1481.)

Accordingly, the requests for issue and/or evidentiary sanctions are DENIED WITHOUT PREJUDICE.

VI.

CONCLUSION

For
the foregoing reasons, the Motions are GRANTED IN PART.

The
Court GRANTS the request of Defendant to compel Plaintiff's further responses

to set two of Defendant's requests for production. Plaintiff is ORDERED to provide verified, complete, and code-compliant responses, without objections, to set two of Defendant's requests for production nos. 27-35 within 10 days of the date of notice of this order.

The

Court GRANTS the request of Defendant to compel Plaintiff's further responses to set two of Defendant's special interrogatories. Plaintiff is ORDERED to provide verified, complete, and code-compliant responses, without objections, to set two of Defendant's special interrogatories nos. 46-57 and 59-62 within 10 days of the date of notice of this order.

The

requests for monetary, issue, and evidentiary sanctions pursuant to the Motions are DENIED.

Dated: September 11, 2026 _____ Hon. Eric Harmon

Judge of the Superior
Court